

HOUSE BILL No. 1085

DIGEST OF INTRODUCED BILL

Citations Affected: IC 34-13-3; IC 34-24-6; IC 34-51-2-6.

Synopsis: Civil liability for child sexual abuse material. Permits an individual depicted in child sexual abuse material or obscene material on the Internet, or exposed to obscene material on the Internet, to bring a civil action against a person who knowingly or intentionally: (1) allows or facilitates access to the material on the Internet; (2) disseminates the material on the Internet; or (3) is a content provider of prohibited material. Allows the attorney general to seek injunctive relief. Creates a safe harbor provision for certain persons under certain conditions. Provides that: (1) comparative fault; and (2) tort claims immunities; do not apply to a civil action based on prohibited material.

Effective: July 1, 2026.

King

January 5, 2026, read first time and referred to Committee on Judiciary.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1085

A BILL FOR AN ACT to amend the Indiana Code concerning civil procedure.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 34-13-3-2, AS AMENDED BY P.L.111-2021,
2 SECTION 102, IS AMENDED TO READ AS FOLLOWS
3 [EFFECTIVE JULY 1, 2026]: Sec. 2. **(a)** This chapter applies to a
4 claim or suit in tort against any of the following:

5 (1) The bureau of motor vehicles commission established by
6 IC 9-14-9-1.

7 (2) A member of the bureau of motor vehicles commission board
8 established under IC 9-14-9-2.

9 (3) An employee of the bureau of motor vehicles commission.

10 (4) A member of the driver education advisory board established
11 by IC 9-27-6-5.

12 (5) An approved postsecondary educational institution (as defined
13 in IC 21-7-13-6(a)(1)), or an association acting on behalf of an
14 approved postsecondary educational institution, that:

15 (A) shares data with the commission for higher education
16 under IC 21-12-12-1; and

17 (B) is named as a defendant in a claim or suit in tort based on



any breach of the confidentiality of the data that occurs after the institution has transmitted the data in compliance with IC 21-12-12-1.

(6) The state fair commission established by IC 15-13-2-1.

(7) A member of the state fair commission established by IC 15-13-2-1 or an employee of the state fair commission.

(8) The state fair board established by IC 15-13-5-1.

(9) A member of the state fair board established by IC 15-13-5-1.

(b) Section 3 of this chapter does not apply to an action brought under IC 34-24-6-7.

SECTION 2. IC 34-13-3-2.5, AS AMENDED BY P.L.111-2021, SECTION 103, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2.5. The addition of section ~~2(5)~~ **2(a)(5)** of this chapter by SEA 146-2016, SECTION 1, does not apply to a claim or suit in tort against a postsecondary educational institution if filed before March 30, 2016.

SECTION 3. IC 34-24-6 IS ADDED TO THE INDIANA CODE AS A NEW CHAPTER TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]:

Chapter 6. Child Sexual Abuse Material

Sec. 1. (a) Except as provided in subsection (b), this chapter does not apply to:

(1) a newspaper or news service that publishes news related information through an interactive computer service; or

(2) an interactive computer service provider that solely provides access or connection to an interactive computer service or other Internet content that is not under the control of that interactive computer service provider.

(b) This chapter applies to a person that is:

(1) an information content provider of prohibited material; or

(2) an interactive computer service provider that has actual knowledge from its own oversight efforts, from notice provided by another person, or from any other source that its interactive computer service contains prohibited material, unless, as soon possible after learning of the prohibited material, the person takes immediate voluntary good faith actions to remove or block access to the prohibited material.

Sec. 2. As used in this chapter, "child sexual abuse material" has the meaning set forth in IC 35-36-10-2.

Sec. 3. As used in this chapter, "information content provider" has the meaning set forth in 47 U.S.C. 230(f)(3). The term includes a person that:



(1) knowingly engages in conduct, including the use of computer programming, algorithms, artificial intelligence, or other technology that the person knows is likely to induce another information content provider to:

(A) disseminate prohibited material on the person's interactive computer service; or

(B) allow or facilitate access to prohibited material by means of the person's interactive computer service; or

(2) otherwise materially contributes to the prohibited character of the content.

Sec. 4. As used in this chapter, "interactive computer service provider" means a person that provides interactive computer service as defined in 47 U.S.C. 230(f)(2). The term includes its affiliates or subsidiaries.

Sec. 5. As used in this chapter, "obscene material" means a matter or performance described in IC 35-49-2-1.

Sec. 6. As used in this chapter, "prohibited material" means child sexual abuse material or obscene material.

Sec. 7. (a) If a person:

(1) knowingly or intentionally allows or facilitates access to prohibited material on an interactive computer service;

(2) knowingly or intentionally disseminates prohibited material by any means on an interactive computer service; or

(3) is an information content provider of prohibited material through an interactive computer service;

an individual depicted in the prohibited material, or an individual exposed to the obscene material, may bring a civil action against the person.

(b) If the individual depicted in the prohibited material or exposed to the obscene material is a child less than eighteen (18) years of age, the child's parent or guardian may bring a civil action against the person.

(c) An individual who prevails in an action described in this section is entitled to:

(1) actual damages;

(2) liquidated damages of up to five thousand dollars (\$5,000);

(3) punitive damages;

(4) injunctive relief; and

(5) court costs, reasonable attorney's fees, and other reasonable expenses of litigation, including expert witness fees.

Sec. 8. The attorney general may bring an action for injunctive



1 relief against a person who violates section 7(a)(1) through 7(a)(3)
2 of this chapter.

3 Sec. 9. (a) The immunities in IC 34-13-3-3 (tort claims
4 immunities) do not apply to an action brought under section 7 of
5 this chapter.

6 (b) An action brought by:

7 (1) an individual under section 7 of this chapter; and

8 (2) the attorney general under section 8 of this chapter;
9 may be brought without the requirement of exhausting
10 administrative remedies, if applicable.

11 SECTION 4. IC 34-51-2-6 IS AMENDED TO READ AS
12 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) In an action
13 based on fault that is brought against:

14 (1) one (1) defendant; or

15 (2) two (2) or more defendants who may be treated as a single
16 party;

17 the claimant is barred from recovery if the claimant's contributory fault
18 is greater than the fault of all persons whose fault proximately
19 contributed to the claimant's damages.

20 (b) In an action based on fault that is brought against two (2) or
21 more defendants, the claimant is barred from recovery if the claimant's
22 contributory fault is greater than the fault of all persons whose fault
23 proximately contributed to the claimant's damages.

24 (c) This section does not apply to an action brought under
25 IC 34-24-6-7.

